

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Tessa Yesselman	Team: Squad #4	CCRB Case #: 202004499	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 06/20/2020 2:39 PM	Location of Incident: § 87(2)(b)	Precinct: 62	18 Mo. SOL 12/20/2021	EO SOL 5/4/2022	
Date/Time CV Reported Mon, 06/22/2020 9:10 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Mon, 06/22/2020 9:10 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Christophe Mattar	14279	966199	062 PCT
2. SGT Ali Hammutoglu	3366	938636	062 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Marvin Cox	10040	966007	062 PCT
2. POM Gregory Floyd	28716	938491	062 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Christophe Mattar	Abuse: Police Officer Christopher Mattar threatened to arrest § 87(2)(b)	§ 87(2)(b)
B.POM Christophe Mattar	Abuse: Police Officer Christopher Mattar threatened § 87(2)(b) with the use of force.	§ 87(2)(b)
C.SGT Ali Hammutoglu	Abuse: Sergeant Ali Hammutoglu forcibly removed § 87(2)(b) to the hospital.	§ 87(2)(b)

Case Summary

On June 22, 2020, § 87(2)(b) filed this complaint with the CCRB via the Call Processing System. § 87(2)(b) filed this complaint on behalf of himself and his mother, § 87(2)(b) (**01 Board Review**).

On June 20, 2020, at 2:39 PM, Sergeant Ali Hammutoglu, Police Officer Christopher Mattar, Police Officer Marvin Cox, and Police Officer Gregory Floyd responded to a 911 call made for a landlord-tenant dispute at § 87(2)(b) in Brooklyn. PO Mattar threatened to arrest § 87(2)(b) and took out his Taser (**Allegations A and B: Abuse of Authority, § 87(2)(g)**). Sgt. Hammutoglu removed § 87(2)(b) to the hospital (**Allegation C: Abuse of Authority, § 87(2)(g)**).

No arrests were made or summons issued regarding this incident.

The CCRB received body worn camera of this incident (**Board Review 5-Board Review 18**).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Christopher Mattar threatened to arrest

§ 87(2)(b)

Allegation (B) Abuse of Authority: Police Officer Christopher Mattar threatened § 87(2)(b) with the use of force.

It is undisputed that PO Mattar unholstered his taser and threatened to arrest § 87(2)(b). It is further undisputed that PO Mattar commanded § 87(2)(b) to go inside and that § 87(2)(b) went to the top of his stairs, came back down, and began to walk towards § 87(2)(b) while police officers and EMT's were attempting to put her on a stretcher to bring her to an ambulance.

§ 87(2)(b) stated (**Board Review 3**) that he and § 87(2)(b) are engaged in an ongoing dispute with the tenant in their basement apartment. On this day, § 87(2)(b) broke a window in the basement apartment and then sat in a chair in the front yard. At approximately 2:40 PM, § 87(2)(b) saw § 87(2)(b) speaking with police officers in the front yard. § 87(2)(b) went outside to see what was happening, and PO Mattar told him to go back inside multiple times. § 87(2)(b) went back inside for a couple of minutes and then went back outside. PO Mattar told § 87(2)(b) that they were waiting for an ambulance for § 87(2)(b) and told § 87(2)(b) to go back inside again. § 87(2)(b) responded that § 87(2)(b) did not need to go to the hospital and began to talk about the ongoing dispute they have with their tenant, who is a squatter and not a legal tenant. PO Mattar took out his handcuffs, which § 87(2)(b) interpreted as a threat of arrest. PO Mattar put his handcuffs away and pulled out his taser. § 87(2)(b) asked PO Mattar why he took his taser out. PO Mattar did not respond, but held the taser in his hand for approximately two minutes. § 87(2)(b) eventually went back inside.

PO Mattar stated (**Board Review 20**) that, after the decision was made to call an ambulance for § 87(2)(b) he told § 87(2)(b) to go inside multiple times because § 87(2)(b) was yelling at the officers and EMT's and seemed like he intended to interfere with transporting § 87(2)(b) to the hospital. § 87(2)(b) went to the top of the stairs to the porch and stood there for a couple of minutes. § 87(2)(b) and § 87(2)(b) continued to yell. When the ambulance arrived, PO Mattar told § 87(2)(b) that he could go in the ambulance with § 87(2)(b) if he wanted to or drive behind the ambulance. § 87(2)(b) continued to yell at the officers and said that he did not want § 87(2)(b) to go to the hospital and that she was allowed to break the windows in her own home. § 87(2)(b) said that he would "drag" the tenant out of the apartment himself. § 87(2)(b) began to walk back down the

stairs, towards § 87(2)(b) the officers, and the EMT's. PO Mattar told § 87(2)(b) to stay on the porch and not to interfere. § 87(2)(b) took several more steps forward and extended his arms towards § 87(2)(b). § 87(2)(b) was actively resisting against the officers and EMT's and § 87(2)(b) was making her more excitable. PO Mattar briefly took out his handcuffs and told § 87(2)(b) to stay at the top of the stairs. PO Mattar took out his handcuffs because § 87(2)(b) could have been arrested for Obstruction of Governmental Administration if § 87(2)(b) physically intervened with the officers and EMT's attempts to transport § 87(2)(b) to the ambulance. When § 87(2)(b) continued down the stairs, PO Mattar put his handcuffs away and took his taser out. PO Mattar told § 87(2)(b) that if he intervened in what the officers and EMT's were doing he would be arrested. PO Mattar took his taser out because § 87(2)(b) was ignoring his commands to stay on his porch and could have been intending to physically interfere with the officers and EMT's ability to do their jobs. PO Mattar did not recall how he held the taser but thought that he held it at his side. § 87(2)(b) also could have injured § 87(2)(b) by physically intervening and trying to prevent her from going into the ambulance because she was elderly and frail. § 87(2)(b) immediately went back to the top of the stairs and stayed there. PO Mattar put his taser away.

PO Cox (**Board Review 19**) saw PO Mattar remove his taser from his utility belt. PO Mattar did this when § 87(2)(b) was threatening to physically intervene in the officers and EMT's efforts to put § 87(2)(b) on to a stretcher to bring her to the ambulance. PO Mattar repeatedly told § 87(2)(b) to go inside and stay away from § 87(2)(b) and the officers before taking his taser out. § 87(2)(b) was yelling loudly at the officers and making threatening statements. PO Cox did not recall what the specific threats were.

Sgt. Hammutoglu (**Board Review 22**) and PO Floyd (**Board Review 21**) did not recall seeing PO Mattar take out his handcuffs or taser and did not recall hearing PO Mattar tell § 87(2)(b) he could be arrested.

The CCRB obtained fourteen BWC recordings of this incident (**Board Review 5-Board Review 18**). None of the videos capture PO Mattar unholstering his taser or threatening to arrest § 87(2)(b). The BWC footage is split into different videos and audio does not begin until 1:00, so it is possible that these allegations occurred during a lapse of video and/or audio.

PO Cox's BWC (**Board Review 12**) opens with § 87(2)(b) seated in a chair and § 87(2)(b) standing behind her. Two EMT's stand in front of § 87(2)(b). At :44, § 87(2)(b) makes a motion towards § 87(2)(b)'s arm, as if to pull her up from the chair. Audio begins at 1:00. PO Mattar is in the midst of telling § 87(2)(b) to choose to go back inside of his apartment. § 87(2)(b) goes back up the stairs and stands on the porch. § 87(2)(b) continues to yell at the officers, declines to stand, and resists being put on the stretcher. At 4:35, § 87(2)(b) is pictured having come back down the stairs. PO Mattar and Sgt. Hammutoglu stand in front of him to prevent him from walking closer to § 87(2)(b).

At 8:10 of PO Mattar's BWC (video 2/3 received from him) (**Board Review 09**), § 87(2)(b) exits the doorframe from his home and begins to speak loudly to an officer standing at the front door to the basement apartment. § 87(2)(b) says, "She should be arrested," about the tenant. PO Mattar says, "Go inside, I told you to go inside." § 87(2)(b) acquiesces and goes inside of his apartment. At :00 of PO Mattar's BWC (video 3/3) (**Board Review 12**), the EMT's have arrived and are speaking to § 87(2)(b). § 87(2)(b) has left his apartment, gone down the stairs, and is standing directly next to § 87(2)(b) holding on to the chair she is sitting in. There is no audio for the first minute of the video. When the audio begins at 1:00, PO Mattar is in the midst of telling § 87(2)(b) to go back inside. He tells § 87(2)(b) that § 87(2)(b) is going to § 87(2)(b) and says, "So you're going to choose to go inside. Thank you, sir. I truly appreciate it." § 87(2)(b) walks

back to his porch. At 3:45 § 87(2)(b) comes back down the stairs and says he will call a sergeant to report what the officers are doing. Sgt. Hammutoglu tells § 87(2)(b) to go back up the stairs.

Patrol Guide Procedure 221-08 states that a Conducted Electrical Weapon (CEW) should only be used against persons who are actively resisting, exhibiting active aggression, or to prevent individuals from physically injuring themselves or other person(s) actually present. It will often reduce the potential for injuries to members and suspects that may result from physical restraint and should be regarded as a possible alternative to such force and restraint, where practical (**Board Review 28**).

NYS Penal Law 195.05 states that a person is guilty of obstructing governmental administration when he intentionally obstructs, impairs, or perverts the administration of law or other governmental function or prevents or attempts to prevent a public servant from performing an official function, by means of intimidation, physical force or interference (**Board Review 27**).

§ 87(2)(g)

Allegation (C) Abuse of Authority: Sergeant Ali Hammutoglu forcibly removed § 87(2)(b) to the hospital.

It is undisputed that Sgt. Hammutoglu removed § 87(2)(b) to the hospital.

§ 87(2)(b) did not provide a statement to the investigation (**Board Review 2**).

At 6:20 of PO Matar's BWC (**Board Review 09**), § 87(2)(b) says, "I broke the window, I broke it," and § 87(2)(b) responds, "It's your house, you can break whatever you want."

Sgt. Hammutoglu (**Board Review 22**), PO Mattar (**Board Review 20**), PO Floyd (**Board Review 21**), and PO Cox (**Board Review 19**) provided testimony consistent with one another. The officers stated that the incident location is known to the 62nd Precinct and has been designated as a chronic location. The location is known for chronic 911 calls regarding a landlord-tenant dispute, as well as numerous CCRB and IAB complaints. On June 22, 2020, a 911 call came in from the location regarding a landlord-tenant dispute. The 911 caller was the tenant and said that § 87(2)(b) had broken a window in her apartment with a bat. When the officers arrived, § 87(2)(b) acknowledged breaking the window, was irate, and was screaming to the point of being breathless. § 87(2)(b) was unable to answer questions and was disjointed and speaking incoherently.

Sgt. Hammutoglu (**Board Review 22**) stated that he made the decision to call the ambulance to bring § 87(2)(b) to the hospital. Sgt. Hammutoglu made this decision because § 87(2)(b) was § 87(2)(b) years old at the time of the incident and was screaming to the point of being breathless, which made Sgt. Hammutoglu concerned for her physical health. Sgt. Hammutoglu was also concerned for § 87(2)(b)'s mental health and her ability to care for herself because she seemed unable to calm down,

was unable to answer questions about what happened, and acknowledged breaking the tenants window with a bat, which could have caused serious physical injury to herself and the tenant. When the EMT's arrived, they agreed that § 87(2)(b) should be removed to the hospital.

The Aided report (**Board Review 04**) prepared by PO Mattar reads that § 87(2)(b) was behaving erratically, screaming at the top of her lungs, and showed signs of not being able to care for herself.

As per Patrol Guide Procedure 221-13: An emotionally disturbed person (EDP) is a person who appears to be mentally ill or temporarily deranged and is conducting themselves in a manner which a police officer reasonably believes is likely to result in serious injury to themselves or others (**Board Review 29**).

§ 87(2)(g)
[REDACTED]

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to one previous CCRB complaint, § 87(2)(b) [REDACTED] (25 Board Review).
- § 87(2)(b) has been party to one previous CCRB complaint, § 87(2)(b) [REDACTED] (26 Board Review).
- PO Mattar has been a member of service for two years and has been subject in one previous CCRB case with one allegation and no substantiations. § 87(2)(i) [REDACTED]
- Sgt. Hammutoglu has been a member of service for fifteen years and has been a subject in three previous CCRB cases with four allegations and no substantiations. § 87(2)(g) [REDACTED]

Mediation, Civil and Criminal Histories

- This case was not suitable for mediation.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]

Squad No.: 4

Investigator: Tessa Yesselman SI Tessa Yesselman 3/16/2021
Signature Print Title & Name Date

Squad Leader: Raquel Velasquez IM Raquel Velasquez 03/16/2021
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date